A cross-cultural analysis of transparency: the interplay of law, privacy policies, and user perceptions

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Key Points

- Transparency requirements in privacy and data protection laws, like the General Data Protection Regulation in the EU, the California Privacy Rights Act in the state of California in the USA, and Personal Information Protection Law in China, play an essential role in informing individuals, civil society, and authorities about how personal data are processed in digital services and products.
- These transparency mandates should also lay the groundwork for the implementation and enforcement of data protection measures, empowering individuals to better protect their data.
- However, while various data protection regulations encompass transparency requirements, the understanding and application of transparency principles across different jurisdictions lack uniformity, which could be a result of cultural differences.
- This article aims to address this research gap by conducting a cross-cultural analysis of privacy and data protection transparency requirements in the European Union, California, and China, the practice of transparency manifested through privacy policies and the perceptions of transparency by users in the three jurisdictions.

Introduction

Transparency is not a universal concept in its formulation or application. For example, transparency can be prospective or retrospective. Prospective transparency gives information about a process pre-emptively—that is, prior to the envisaged actions—while retrospective transparency gives information retroactively after the process is completed and thus serves as more of an explanation.[1] Although each comes with its own conceptions of the information to be provided, prospective and retrospective transparency requirements can also complement one another.

In the legal literature, the focus has rested on transparency obligations, that is provisions requiring certain information disclosures, which are important in the field of data protection law. Transparency requirements are the foundation to enable individuals, civil society groups, and authorities working on enforcing data protection to get an understanding of how information about them is being processed by digital services and products. In theory, knowledge of the data operations at hand should enable users to make informed decisions and also facilitate the enforcement of data protection rules. However, despite the importance and inclusion of such transparency obligations in the recent data protection regimes (eg The General Data Protection Regulation (GDPR),[2] the California Privacy Rights Act (CPRA),[3] and Personal Information Protection Law

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1 Sandra Wachter, Brent Mittelstadt and Luciano Floridi, 'Why a Right to Explanation of Automated Decision-Making Does Not Exist in the General Data Protection Regulation' (2017) 7 International Data Privacy Law 76.

2 Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), OJ 2016 L 119/1.

3 CPRA CAL CIV CODE ss 1798.100–1798.199.100 (2018 Cal. Legis. Info.) (amended by 2021 Cal Legis Serv Ch 525 (A.B. 694)).

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(PIPL)[4]), there is currently a lack of understanding on how transparency as a principle is understood and applied in different jurisdictions.

The absence of uniformity across these regions is surprising due to the evident influence of GDPR on subsequent CPRA and PIPL. Currently, there exists a gap in comprehending how cross-cultural disparities manifest in the practical application of transparency principles within the realm of privacy. This gap may arise from our contemporary comprehension of information privacy predominantly originating from Western origins,[5] compounded by the pioneering impact of the EU's GDPR and limited accessibility to privacy literature in languages other than English. Furthermore, existing literature has predominantly focused on the specific substantive requirements outlined by the different legal frameworks. Considerable efforts have been directed towards devising taxonomies for companies to ensure compliance with transparency requirements.[6] As a result, various tools have been developed to enhance transparency and ensure compliance with the transparency requirements of related privacy laws.[7] However, this narrow focus on compliance overlooks an opportunity to develop a broader understanding of how transparency requirements manifest in practice through privacy policies. Viewing transparency through this broader lens entails delving into three largely unexplored topics: (i) the interplay between legal frameworks across jurisdictions, (ii) how companies interpret and adhere to the transparency requirements dictated by privacy regulations in different jurisdictions, and (iii) user perceptions concerning transparency.

This article endeavours to bridge existing research gaps by adopting a cross-cultural methodology to provide a comprehensive picture of transparency in privacy regulations, in privacy policies, and in the perceptions of users from different regions. While existing literature focus on comparisons of the regulatory frameworks of the EU, USA, and China,[8] this article further adds how companies interpret the principle of transparency in different jurisdictions through a case study and seeks to capture users' perspectives from these diverse regions through an empirical and cross-cultural approach. In the section 'Transparency requirements within the law', we juxtapose the EU's established GDPR with California's recently amended CPRA and China's newly enacted PIPL. This comparative foundation then underpins our investigation in the section 'Transparency in practice' into the practices of transparency obligations through the lens of a specific case study: TikTok, a popular social media platform across all three regions. Through this analysis, we describe the connection and interplay between substantive law and the practice of transparency obligations. In the sections 'User perceptions of transparency' and 'Discussion' –, we encapsulate our examination of empirical data gathered via a survey conducted from March to July 2023, which serves to capture users' perceptions concerning transparency from different jurisdictions. Our study culminates in a synthesis in the section 'Conclusion'.

Transparency requirements within the law

Transparency requirements are intimately tied to the concept of prospective transparency in data protection law. At its most basic level, transparency requirements require informing individuals about the ongoing data processing before such processing takes place.[9] Transparency requirements are critical because they underpin many rights which individuals hold under data protection laws. For example, rights to remedy inaccuracies in the data or receive information required for consent to data processing require that individuals are provided with sufficient information to be first aware of the processing, and second understand the scope and certain details of the processing.[10] Furthermore, because

4 The Personal Information Protection Law of the People's Republic of China, 2021.

5 Luciano Floridi, 'Four Challenges for a Theory of Informational Privacy' (2006) 8 Ethics and Information Technology 109.

6 Rene Meis, Roman Wirtz and Maritta Heisel, 'A Taxonomy of Requirements for the Privacy Goal Transparency' in Simone Fischer-Hübner, Costas Lambrinoudakis and Javier López (eds), *Trust, Privacy and Security in Digital Business* (Springer, Cham, Switzerland, 2015).

7 Elias Grünewald and Frank Pallas, 'TILT: A GDPR-Aligned Transparency Information Language and Toolkit for Practical Privacy Engineering' in *Proceedings of the 2021 ACM Conference on Fairness, Accountability, and Transparency* (ACM 2021); Elias Grünewald and others, 'TIRA: An OpenAPI Extension and Toolbox for GDPR Transparency in RESTful Architectures' in *2021 IEEE European Symposium on Security and Privacy Workshops* (IEEE, 2021); Milena Janic, Jan Pieter Wijbenga and Thijs Veugen, 'Transparency Enhancing Tools (TETs): An Overview' in *2013 Third Workshop on Socio-Technical Aspects in Security and Trust* (IEEE 2013).

8 Igor Calzada, 'Citizens' Data Privacy in China: The State of the Art of the Personal Information Protection Law (PIPL)' (2022) 5 Smart Cities 1129; L Barrera Cano and others, 'A Comparative Perspective of Data Regulation Frameworks and Their Implications for Connected Vehicles' in *Proceedings of the ACM SIGCOMM Joint Workshops on Technologies, Applications, and Uses of a Responsible Internet and Building Greener Internet* (ACM 2022); Paul M Schwartz and Karl-Nikolaus Peifer, 'Transatlantic Data Privacy Law' (2017) 106 Georgetown Law Journal 115.

9 Heike Felzmann and others, "Towards Transparency by Design for Artificial Intelligence" (2020) 26 Science and Engineering Ethics 3333.

10 *Case C-201/14: Bara and Others* [2015]; Heike Felzmann and others, "Transparency You Can Trust: Transparency Requirements for Artificial Intelligence between Legal Norms and Contextual Concerns" (2019) 6 Big Data & Society 205395171986054.

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uninformed individuals cannot object to or avoid unjustified data processing, market mechanisms may not incentivise compliance with privacy laws.[11] Lastly, the transparency requirements could be regarded as an important guarantee for individuals that their data is processed in a lawful and acceptable manner, thus producing more trust between individuals and the data-processing entities.[12] However, research concerning the association between trust and transparency in the social science literature—further examined in the section 'Transparency in practice'—has revealed a complex interplay. Within the domain of privacy research, scholars have demonstrated that simply providing users with transparency measures may not correspond with an increase in trust. On the contrary, users might experience a decline in trust as a result of their heightened awareness of data processing activities, coupled with a lack of control over their personal information.[13]

In order to achieve the above-stated goals of data protection, the data protection regulations in the EU, California, and China have established clear transparency requirements within the GDPR, CPRA, and PIPL. As a preliminary matter, it is important to first recognize that the CPRA has a narrower scope in terms of whom it protects compared to GDPR and PIPL, only protecting the privacy rights of California residents who are consumers.[14] The GDPR and PIPL, on the other hand, pertains to the protection of all natural persons within the borders of the European Union[15] or the borders of the People's Republic of China,[16] respectively, which includes consumers as well as employees, website users, or anyone else whose data is processed by an entity, even if it is not a for-profit company.

Regarding the main provisions underlying these obligations are Articles 13, 14, 33, and 34 of the GDPR, sections 1798.100, 1798.110, 1798.115, and 1798.130 CPRA, and Articles 17, 22, 23, 30, 39, and 57 of the PIPL, along with Articles 5.5 and 8.1 of China's Personal Information Security (PIS) Specification (see the section 'Privacy Policies across the EU, USA, and China'). In regards to the CPRA, other transparency obligations that are not present in the CPRA but which form part of the effective transparency regime regarding data processing will also be analysed, including the data breach notification legislation and the 'Shine the light' law.[17] This is particularly relevant because such provisions, notably regarding data breach notification, are included in the GDPR and PIPL, and thus their omittance in regard to the California data protection system would be counterproductive to an effective comparison between the three regimes. Recitals 39, 58, and 60 of the GDPR provide guidance on the goals and normative basis of its substantive provisions on disclosure requirements. Section 1798.150 of the California Civil Code, despite being outside the provisions of the CPRA, governs data breach disclosure obligations.

While there are some similarities in each jurisdiction's transparency requirements, Table 1 summarises the different notification obligations in the GDPR, CPRA, and PIPL. These include information on the data collection as well as contact details of a Data Protection Officer or someone at the company that can answer data protection and privacy-related questions; the legal basis and purpose of the data being collected and processed; the source of the data; the storage period; the access of third parties to the data; the international transfers; the rights that individuals have with respect to their data; information on whether decision-making is automated; and notification duties in cases of data breaches.

As mentioned, similarities aside, there are notable differences between the regions' jurisdictions' information disclosure requirements and perceptions of users about transparency (see the section 'User perceptions of transparency'). In Table 1, we see that GDPR has followed a contained and comprehensive approach, by listing transparency requirements in certain articles (Articles 12, 13, and 14 GDPR) and providing further clarifications in the associated recitals. This approach also makes sense as the EU has to harmonize many different fragmented data protection laws across the EU and thus having clear information duties can enhance this process.[18] By comparison, the transparency

11 Filippo Lancieri, 'Narrowing Data Protection's Enforcement Gap' (2022) 74 Maine Law Review 15.

12 Miremad Soleymanian, Charles Weinberg and Ting Zhu, 'Privacy Concerns, Economic Benefits, and Consumer Decisions: A Multi-Period Panel Study of Consumer Choices in the Automobile Insurance Industry' (2021) <https://papers.ssrn.com/abstract=3905034> accessed August 1 2023.

13 Florian Bemmann and others, 'The Influence of Transparency and Control on the Willingness of Data Sharing in Adaptive Mobile Apps' in Jeff Nichols (ed), *Proceedings of the ACM on Human-Computer Interaction* (ACM 2022); Eelco Herder and Olaf van Maaren, 'Privacy Dashboards: The Impact of the Type of Personal Data and User Control on Trust and Perceived Risk' in Tsvi Kuflik and others (eds), *Adjunct publication of the 28th ACM conference on user modeling, adaptation and personalization* (ACM 2020).

14 See California Privacy Rights Act 2020, s 3(A).

15 See General Data Protection Regulation 2016, art 1 (1).

16 See Personal Information Protection Law 2021, art 2.

17 See California Civil Code, s 1798.82.

18 Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), OJ 2016 L 119/1.

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Table 1. Overview of data protection and privacy transparency requirements in the EU, USA, and China.

Transparency requirement	GDPR	CPRA	PIPL
Data collection/contact information	Article 13(1)(a–b), Article 14(1)(a–b) GDPR—Identity and contact details of controller and, if applicable, controller's representative / data protection officer	section 1798.100(a)(1), 1798.110(a)(1), 1798.115 (a)(1)—categories of personal information collected	Article 17(1) PIPL—name and contact information of the personal information processor
Legal basis/purpose	Article 13(1)(c–d) and (3), Article 14(1)(c) and (3) GDPR—purposes of processing and legal basis along with legitimate interests (if necessary, and only for data directly obtained from the data subject), purpose of any further processing (if differs)	Section 1798.100(a)(1) and (2)—purposes for which the categories of any sensitive personal information are collected, section 1798.110(a)(3)—purposes for collecting, selling or sharing the personal information (on request)	Article 7, 17(2) PIPL—purposes of personal information processing Article 30 PIPL—In addition, notification of an individual of the necessity of processing his sensitive personal information and the impact it has on his rights and interests, except where such notification is not required under this Law.
Source of data	Article 14(1)(2)(f) GDPR—from which source the personal data originate, and, if applicable, whether it came from publicly accessible sources—where the data was not obtained from the data subject!	Section 1798.110(a)(2) – categories of sources from which the personal information is collected (on request)	
Storage period	Article 13(2)(a), Article 14 (2)(a) GDPR—period for which the data will be stored, or, if not possible, the criteria used to determine the period	Section 1798.100(a)(3)—length of time the business intends to retain each category of personal information, including sensitive personal information, or if that is not possible, the criteria used to determine the time period	Article 17(2) PIPL—storage periods of the personal information to be processed
Third-party access	Article 13(1)(e), Article 14 (e) GDPR—the recipients or categories of recipients of the personal data, if any	Section 1798.100(a)(1)—whether the information is sold or shared, 1798.110 (a)(4), Article 1798.115(a) (3)—categories of third parties to whom certain categories of personal information are disclosed (on request)	Article 22—if needs to transfer personal information due to reasons such as merger, division, dissolution, or being declared bankrupt, shall inform the individual of the name and contact information of the

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Table 1. *Continued*

Transparency requirement	GDPR	CPRA	PIPL
			recipient, Article 23 PIPL—other transfers: shall inform individuals of the name and contact information (receiving party must inform individual + obtain consent if changes original purpose and method of processing).
International transfer	Article 13(1)(f) GDPR—(non)existence of Commission adequacy decision OR in the case of transfers in Articles 46 and 47, or Article 49(1) second subparagraph, appropriate or suitable safeguards and the means to obtain a copy of them or where they have been made available)		Article 39 PIPL—When transfer outside of China, inform same information as sections 1–2 of the table in respect to the recipient, as well as the methods and procedures for the individuals to exercise their rights as provided in the PIPL over the recipient
Rights	Article 13(2)(c–e), Article. 14(2)(c–e) GDPR—notification of right to withdraw consent, lodge a complaint with a supervisory authority, Article 13(2)(e)—whether the he provision of personal data is a statutory or contractual requirement, or a requirement necessary to enter into a contract, as well as whether the data subject is obliged to provide the personal data and of the possible consequences of failure to provide such data	Section 1798.110(c), –1798.130(a)(5)(B)—on an INTERNET WEBSITE—that the consumer can request further information (purpose, categories of personal information collected, categories of sources, categories of third parties' personal information is transferred to), that the consumer has the right to request the specific pieces of personal information the business has collected about them Section 1798.121(a)—information on the right to limit the use or disclosure of their personal information, if such information is to be used for purposes other than in this section	Article 17(3) PIPL—methods and procedures for the individual to exercise his rights as provided in this Law Article. 39 PIPL—regarding international data transfers, methods and procedures for the individuals to exercise their rights as provided in this Law over the overseas recipient

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Table 1. *Continued*

Transparency requirement	GDPR	CPRA	PIPL
		Section 1798.130(a)(5)(A)—in the PRIVACY POLICY—a description of a consumer's rights (right to be informed, right to delete personal information, right to correct inaccurate personal information, right of no retaliation following opt out or exercise of other rights)	
Automated decision-making	Article 13(2)(f), Article 14 (2)(f) GDPR—notification of automated decision-making		Article 17(2) PIPL—means of personal information processing Article 24 alinea 3 PIPL—Right for individual to ask for clarity regarding individual automated decision-making
Notification of a personal data breach	Article 34(1–2), Article 33 (3)(b–d) GDPR—disclosure if likely to result in a high risk to the rights and freedoms of natural persons	Section 1798.82(a)—disclosure if breach of the security of the system to the resident of California whose personal information was or is reasonably believed to have been acquired by an unauthorized person	Article 57 PIPL—Similar structure to GDPR, but done in principle in every case

requirements are relatively scattered in different articles in the PIPL and CPRA.

While the EU approach to data protection can be characterized as that of a comprehensive, multi-sector data protection law, the US approach, especially on a Federal level, has been that of a sectoral approach with 'several laws of a narrow scope'.[19] In the EU, personal data protection and privacy are fundamental rights, while in the USA, the rights are based on consumer protection regulations and motivated by the protection of liberty, with limited protection of privacy in the Constitution.[20] The former consideration is especially relevant in regards to what one may term the 'decentralization' of the California regime of data protection transparency requirements. While in the PIPL and GDPR all relevant substantive provisions and obligations are 'centralized' in their respective data protection act, most California provisions on data breaches and its 'Shine the Light' right are not included in its data protection act but in other sections of its Civil Code.[21] This leads to a complication of the system, with the data breach provisions only applying to certain, more sensitive categories of personal information, which do not correspond exactly with the CPRA's list of sensitive personal information.[22]

19 Emmanuel Pernot-LePlay, 'EU Influence on Data Privacy Laws: Is the US Approach Converging with the EU Model?' (2020) 18 Colorado Technology Law Journal 25, 26.

20 Ibid.

21 See California Civil Code, ss 1798.82 and 1798.83 (n 17)

22 David Zetoony, 'Navigating the Chaos of the CCPA: The Most Frequently Asked Questions When Implementing Privacy Programs' (2022) 8 Loyola University Chicago Journal of Regulatory Compliance (JRC) 1.

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In contrast to the GDPR, the CPRA seems to focus intensively on the ability for consumers to request certain information. This is most notable regarding the categories of third parties to whom the personal information was sold by category of personal information and the categories of personal information disclosed for a business purpose, each of which is only to be provided on request.[23] This is in conjunction with the 'Shine the Light' provisions in the rest of the Civil Code granting a right to consumers to be provided with past personal information collected on them, on their request.[24] In providing a liberty-driven approach to transparency, the CPRA appears to place a particular importance on giving consumers the ability to obtain certain information, if they so wish—perhaps at the cost of requiring a less extensive and comprehensive initial disclosure of information in a privacy policy. Lastly, the CPRA can be seen as somewhat conservative in its transparency obligations, not including any provisions on external transfer of personal information, and not making any reference to disclosure of the presence of automatic processing or the risks of processing.

The more recently established PIPL can be perceived as a response to various privacy scandals that have occurred in China and as a measure to prevent privacy infringement.[25] For instance, in 2022, the ride-hailing app Didi faced significant repercussions when it was fined 11.2 billion USD by the Cyberspace Administration of China.[26] The fine was imposed due to Didi's excessive and illegal collection of personal information as well as a threat to national security with its data processing activities since 2015. This violation was deemed to be in violation of the Cybersecurity Law, Data Security Law, and the Personal Information Protection Law of the People's Republic of China. In light of this, it is unsurprising that stricter provisions on international transfers of personal data out of China have been included.[27] From a transparency point of view, companies must now include information on the overseas recipient as well as information on the 'methods and procedures' for individuals to exercise their rights under the PIPL. In assuring individual knowledge over the outflow of data, the PIPL can be seen as pursuing this goal of 'data sovereignty'.[28] This is a significant difference in approach, furthermore, from the CPRA, which does not provide for any specific provisions on external transfers of personal data. However, unlike both the GDPR and CPRA, providing the categories of recipients is not mandated in China but the company must elaborate on each recipient individually rather than clustering them together. However, as shown below (see the section 'Transparency in practice') in practice this has not necessarily been reflected.[29]

Also relevant is the potentiality under the PIPL where public entities could be exempted from notification obligations. While the GDPR and CPRA provide an exemption only when it is provided in law, or in any case with judicial oversight,[30] in the PIPL, Articles 35 and 18 together may allow state organs to process data without informing individuals under specific circumstances. Article 35 of the PIPL states that when:

> state organs process personal information in order to perform their statutory duties, they shall fulfil the obligation of notification in accordance with the provisions of this Law, *except* under the circumstances specified in the first paragraph of Article 18 of this Law or where notification will hinder the state organs from performing their statutory duties.[31]

The first paragraph of Article 18 stipulates that 'when processing personal information, personal information processors are permitted *not* to inform individuals of the matters specified in the first paragraph of the preceding article where laws or administrative regulations require confidentiality or provide no requirement for such notification'.[32] Combined, the two articles could pave the conditions to emancipate the state organs from notification duties. Nevertheless, this could potentially compromise the state's goal of presenting itself as a protector of privacy, a role that has been suggested to play a role in the development of the PIPL.[33]

Lastly, the PIPL does require disclosure of the presence of automated processing and the risks of processing (in conjunction with sensitive personal information), along with the aforementioned disclosure of external transfers. As a result, it appears to follow the GDPR in these aspects of disclosure requirements (particularly regarding the potential risks and security considerations of the processing).

23 See California Privacy Rights Act 2020, s 1798.110(a)(4), 1798.110(a)(3), and 1798.115(a)(3).

24 See California Civil Code State of California, California's 'Shine the Light' Law 2005 [CIV s 1798.83], s 1798.83(a).

25 Peiru Cai and Li Chen, 'Demystifying Data Law in China: A Unified Regime of Tomorrow' (2022) 12 International Data Privacy Law 75.

26 See Cyberspace Administration of China, "国家互联网信息办公室有关负责人就对滴滴全球股份有限公司依法作出网络安全审查相关行政处罚的决定答记者问" (*Cyberspace Administration of China*, 21 July 2022) <http://www.cac.gov.cn/2022-07/21/c_1660021534364976.htm> accessed 1 August 2023.

27 See Personal Information Protection Law 2021, art 39.

28 Calzada (n 8).

29 See Personal Information Protection Law 2021, arts 22 and 23.

30 See General Data Protection Regulation 2018, arts 14(5)(c), 23; California Privacy Rights Act 2020, s 1798.145(a).

31 Personal Information Protection Law 2021, art 35.

32 See Personal Information Protection Law 2021, art 18.

33 Mark Jia, 'Authoritarian Privacy' (2024) 91 University of Chicago Law Review 733.

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Transparency in practice

Analysing privacy policies

Gaining insights into how information disclosure requirements are implemented in practice across different regions (see the section 'Transparency requirements within the law') is crucial for understanding how those transparency requirements are translated into practice. In practice, companies fulfil their duty of transparency by providing individuals with privacy policies. Despite the recognized limitations of privacy policies, including language complexity,[34] time-consuming reading,[35] format incomprehensibility,[36] and user reluctance to engage with them,[37] privacy policies remain the primary means to comprehend how data within a company is processed. In this context, a privacy policy functions as a 'transparency board', enabling companies to inform users of their data processing practices and fulfilling compliance with legislation such as the European Union's GDPR,[38] while it also allows non-profit organisations to scrutinize and evaluate a company's practices to safeguard (or a lack of safeguarding for) user privacy.[39] However, researchers have pointed out discrepancies between companies' policy statements and their actual data processing activities. For example, instances include the lack of transparency on tracking and the lack of user consent for third-party tracking of iOS and Android apps,[40] disparities between privacy policies and privacy labels of iOS apps,[41] inconsistencies in voice assistant apps on Amazon Alexa and Google Assistant in terms of a mismatch between the privacy policies and the description of the apps,[42] and incongruence in Chinese iOS apps' handling of consent and of the refusal of consent with the legal norms of consent in PIPL.[43] This article does not aim to reverse engineer the transparency of companies' data practices. Instead, it utilizes TikTok, a social media provider operating in the three regions of interest, as a case study to explore how transparency requirements outlined in the section 'Transparency requirements within the law' are implemented in practice. Moreover, the study seeks to understand how individuals from these regions perceive transparency when encountering the table of contents from TikTok's privacy policy in their respective regions.

Prior research on the analysis of privacy policies has shown that notable differences pre- and post-GDPR occurred on the content of such documents, such as increased availability of privacy policies and cookie banners on websites after GDPR took effect, increased coverage of data practices, GDPR compliance and specificity in the privacy policies.[44] On the other hand, privacy policies have also become lengthier and more obfuscating.[45] This allowed a tracking of the impact of the GDPR and the transparency requirements and showed both increased bloat and lack of readability of privacy policies, as well as the disclosure of increasingly worrisome data practices, especially a decreased provision for choice and increased use of sensitive personal data.[46] Other research on privacy policies looked at cross-country differences, such as the country difference on users' attitude to the content of privacy policies, or the strength of privacy policies in different countries or the availability.[47] Along with the cross-jurisdictional

34 Robert W Proctor, M Athar Ali and Kim-Phuong L Vu, 'Examining Usability of Web Privacy Policies' (2008) 24 International Journal of Human–Computer Interaction 307; Joel R Reidenberg and others, 'Disagreeable Privacy Policies: Mismatches between Meaning and Users' Understanding' (2015) 30 Berkeley Technology Law Journal 1; Ali Sunyaev and others, 'Availability and Quality of Mobile Health App Privacy Policies' (2015) 22/1 Journal of the American Medical Informatics Association 28.

35 Aleecia M McDonald and Lorrie Faith Cranor, 'The Cost of Reading Privacy Policies' (2008) 4 Isjlp 543.

36 Aleecia M McDonald and others, 'A Comparative Study of Online Privacy Policies and Formats' in Ian Goldberg and Mikhail J Atallah (eds), *International Symposium on Privacy Enhancing Technologies* (Springer, Berlin, Heidelberg, Germany, 2009).

37 Lior Jacob Strahilevitz and Matthew B Kugler, 'Is Privacy Policy Language Irrelevant to Consumers?' (2016) 45(S2) The Journal of Legal Studies 69.

38 Thomas Linden and others, 'The Privacy Policy Landscape After the GDPR' (2018) <http://arxiv.org/abs/1809.08396> accessed 4 August 2023; Welderufael B Tesfay and others, 'PrivacyGuide: Towards an Implementation of the EU GDPR on Internet Privacy Policy Evaluation' in *Proceedings of the Fourth ACM International Workshop on Security and Privacy Analytics* (ACM 2018).

39 For example, works by Electronic Frontier Foundation, <https://www.eff.org/> accessed 4 August 2023.

40 Konrad Kollnig and others, 'Are iPhones Really Better for Privacy? Comparative Study of iOS and Android Apps' (2021) <https://arxiv.org/abs/2109.13722> accessed 4 August 2023.

41 Akshath Jain and others, 'ATLAS: Automatically Detecting Discrepancies Between Privacy Policies and Privacy Labels' (IEEE European Symposium on Security and Privacy Workshops, Delft, July 2023).

42 Song Liao and others, 'Measuring the Effectiveness of Privacy Policies for Voice Assistant Applications' in *ACSAC '20: Proceedings of the 36th Annual Computer Security Applications Conference* (ACM 2020).

43 Konrad Kollnig and others, 'Before and after China's New Data Laws: Privacy in Apps' (2023) <http://arxiv.org/abs/2302.13585> accessed 4 August 2023.

44 Linden and others (n 38).

45 Isabel Wagner, 'Privacy Policies across the Ages: Content of Privacy Policies 1996–2021' (2023) 26/3 ACM Transactions on Privacy and Security 1.

46 Ibid.

47 Kuang-Wen Wu and others, 'The Effect of Online Privacy Policy on Consumer Privacy Concern and Trust' (2012) 28 Computers in Human Behavior 889; Jiyoung Cha, 'Information Privacy: A Comprehensive Analysis of Information Request and Privacy Policies of Most-Visited Web Sites' (2011) 21 Asian Journal of Communication 613.

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approach, this study will compare the cross-country convergence and differences of the privacy policies of TikTok in the EU, the USA, and China.

Privacy policies across the EU, USA, and China

Privacy policies fulfil a dual role. Firstly, they serve as a means to communicate with users regarding a company's data processing activities. Secondly, privacy policies are designed to ensure compliance with relevant transparency requirements. Consequently, companies typically adhere to the best practices recommended by governmental entities to ensure that their privacy policies meet the required standards. In the rest of this section, our focus will be on the guidance provided to companies within the three regions concerning the types of information that are mandated or recommended to be included in privacy policies. We will subsequently examine the alignment of TikTok's privacy policies with these guidelines and conduct a comparative analysis, exploring the reasons underlying the similarities and differences observed.

In the European Union, the Article 29 Working Party (WP29) issued Guidelines on transparency under Regulation 2016/679.[48] Although documents from WP29 do not have binding legal force, they are widely recognized as valuable sources of guidance for organizations, data protection authorities, and courts when interpreting and applying data protection laws. Hence, the Guidelines can serve as a tool to analyse TikTok's privacy policy in the EU in terms of its compliance with transparency. In the Annex of the Guidelines, WP29 provided a table of information that must be provided to a data subject under Article 13 or 14 of GDPR, which we present alongside their corresponding sections in TikTok's EU privacy policy in Appendix Table A. The information required under Article 13 or 14 of GDPR and recommended by WP29 is quite detailed and scattered in different sections of TikTok's EU privacy policy.

In California, we look at the California Consumer Privacy Act Regulations (Regulations), which aim to provide guidance on how businesses should implement and comply with the California Consumer Privacy Act.[49] These are issued by the California Privacy Protection Agency (CPPA), the regulatory agency created by the CPRA. Under section 7000 (b), 'A violation of these regulations shall constitute a violation of the CCPA and be subject to the remedies provided for therein', indicating that adherence to the Regulations is legally required and that violations will be treated in accordance with the enforcement mechanisms outlined in the CCPA. In section 7011 of the Regulations, it addresses privacy policies. Subsection (a) of section 7011 delineates the purpose of the privacy policy, aiming to inform consumers of a comprehensive depiction of a business's online and offline information practices. Additionally, the policy must inform consumers about their rights concerning personal information and provide all necessary information to facilitate the exercise of those rights. Subsection (e) of section 7011 outlines five categories of information that must be included in a privacy policy, which are summarized in Appendix Table B. While TikTok's US privacy policy encompasses the description of the business's online and offline information practices in section 7011(e)(1), subsections (e)(2), (e)(3), and (e)(5) focus on consumer rights. These subsections combine the explanation of rights, guidance on exercising those rights, and information pertaining to section 7102, which pertains to compiled data of access, correction, and deletion requests received by TikTok during the previous calendar year, all condensed under the section 'Your rights' in TikTok's privacy policy. Compared to the comprehensive and detailed information requirements in Articles 13 or 14 of the GDPR and the explanations provided by the WP29, the information requirements of CPRA and the Regulations have a narrower scope, centring primarily on consumer rights. While the GDPR and WP29 emphasize a wide range of information provisions, the Regulations prioritize clarity on consumer rights within its privacy policy disclosures.

In China, the Personal Information Security Specification (PIS Specification), which predates the PIPL, recommends and specifies a voluntary standard that outlines the principles and security requirements for the processing of personal information by various organizations.[50] Though it is not mandatory, it is issued

48 Article 29 Data Protection Working Party, 'Guidelines on Transparency under Regulation 2016/679' (European Data Protection Board 2018) <https://edpb.europa.eu/sites/edpb/files/files/file1/edpb_guidelines_202001_transparency_en.pdf> accessed 20 July 2023. The Article 29 Working Party's activities have since been replaced by the European Data Protection Board under art. 94(2) of the General Data Protection Regulation.

49 California Consumer Privacy Act Regulations (California Privacy Protection Agency 2020) < https://oag.ca.gov/sites/all/files/agweb/pdfs/privacy/oal-sub-final-text-of-regs.pdf?> accessed 20 July 2023.

50 State Administration for Market Supervision of the People's Republic of China and Standardization Administration of the People's Republic of China, 'Information Security technology—Personal Information (PI) Security Specification' (State Administration for Market Supervision of the People's Republic of China and Standardization Administration of the People's Republic of China 2020).

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by the State Administration for Market Supervision and the Standardization Administration of the People's Republic of China and is applicable to regulating the personal information processing activities of various organizations.[51] First published in 2017 and modified in 2020, PIS Specification is an industry-standard that complements PIPL by providing specific guidance on how service providers like TikTok should process its users' data. Annex D of the PIS Specification offers a privacy policy template, laying out important modules of information that are recommended by the specification to be available in a given privacy policy. The comparison of Article 17 of PIPL, the PIS Specification and the privacy policy of TikTok in China are outlined in Appendix Table C below.

The privacy policy of TikTok in China (operated under the name Douyin) loosely follows the template and structure offered by the PIS Specification rather than Article 17 of the PIPL. Some changes are noticeable though. Douyin combines the collection and usage of personal information into one section, while 'Your rights' in the specification is a part of 'Managing your personal information'. A new section 'How we store personal information' is available in Douyin's privacy policy, yet is not mentioned in the PIS Specification. In addition, 'The transference of personal information in the globe' is not available in Douyin's privacy policy although is now part of 'How we store in information'; Douyin specifies that based on relevant laws and regulations, personal information collected and produced in the People's Republic of China during the operation of Douyin shall be stored within China. The statement is in compliance with Article 40 of PIPL, which mandates that '*critical information infrastructure operators and personal information processors whose processing of personal information reaches the number prescribed by the State cyberspace administration shall store the personal information collected and generated within the territory of the People's Republic of China within the territory of China*'.

Table 2 compares the privacy policies of TikTok across the EU, CA, and China and in relation to the transparency requirements compiled in the section 'Transparency requirements within the law'.

In analysing TikTok's privacy policies across different regions, patterns and variations emerge regarding the inclusion and categorization of transparency requirements. Overall, there is a high convergence of the sections of privacy policies in the three regions, corresponding to shared transparency requirements in the legal frameworks of the regions. Nonetheless, comparing the privacy policies of China, the EU, and the USA, it is evident that China has the least sections in its policy, and all its sections are shared with the other two regions. In contrast, the EU privacy policy contains two distinctive sections, 'Legal Bases and Processing' and 'Global Operations and Transfers', which potentially reflect an emphasis on data privacy concerns in GDPR. The US privacy policy, on the other hand, features one distinctive section labelled 'Other Rights', encompassing two rights from specific California laws, 'Shine the Light' provisions and content removal rights for users under 18. [52]

Regarding transparency requirements, four out of nine transparency requirements compiled in the section 'Transparency requirements within the law' are directly demonstrated as independent sections in TikTok's privacy policies across all three regions. However, we notice that only China's policy explicitly mentions 'Notification of a Personal Data Breach' under its Security section; while this is an information disclosure requirement common to all three regions, the USA and EU policies do not use the term 'data breach' within their policies. We see that Douyin uses more terminologies that mirror the language in PIPL, in contrast to TikTok in the EU and the US which do not follow the language used in the laws. Further investigation reveals that the categorization of 'Automated Decision-Making' differs in TikTok's Chinese and EU privacy policies. In the EU, it falls under the 'Legal Bases and Processing' section, referred to as 'personalized ads', with a focus on consent and allowing users to decline or withdraw their consent in line with Article 22 of the GDPR. Conversely, TikTok's Chinese privacy policy directly employs the term 'automated decision-making' under the 'personalized recommendation' subsection within the 'Collection' section, pertaining to personalized ads as well. The Chinese policy precisely aligns with Article 24 of PIPL, emphasizing user rights regarding automated decision-making in personalized recommendation services. The policy informs users that they may contact the company to seek explanations and opt-out of decisions solely made through automated processes if their legal rights are significantly impacted. Lastly, it is important to note that sections such as 'Minors', 'Updates', and 'Contact' are unrelated to transparency requirements but form integral components of TikTok's privacy policies.

51 Ibid art 1.

52 California Civil Code s 1798.83 (the State of California, USA 2005); The Privacy Rights of California Minors in the Digital World Act (the State of California, USA 2015).

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Table 2. Comparison of privacy policies of TikTok in relation to the transparency requirements across the EU, CA, and China.

Privacy policies of TikTok by sections	EU	CA	CN	Corresponding transparency requirement in Section 2
Scope	X	X	X	N/A
Summary			X	N/A
Collection	X	X	X	**Data collection / contact information** Automated decision-making for CN Source of data for EU and US
Usage	X	X	X	**Purpose of processing**
Sharing	X	X	X	**Third-party access**
Legal bases and Processing	X			Legal basis / purpose for EU
Rights and Choices	X	X	X	**Rights**
Security and Retention	X	X	X	**Storage period** Notification of a personal data breach for CN under Security International transfer for US
Global Operations and Data Transfers	X			International transfer for EU
Minors	X	X	X	N/A
Updates	X	X	X	N/A
Contact	X	X	X	**Data collection / contact information**
Other rights		X		

*Note: Transparency requirement in **bold** without regions are available for all regions: EU, US, CN.*
N/A= Not applicable.

Furthermore, there are sections where the privacy policies appear to deviate from the law. Most notably, while the PIPL does not allow the naming of *categories* of recipients (and thus, in principle, requires notification of each recipient separately), this is not seen in practice in Douyin's privacy policy. While the privacy policy does name certain recipients as examples of recipients in a certain category, it still essentially only provides categories. This creates a similar approach seen in the privacy policies of TikTok in the USA and EU, though the latter two do not provide concrete examples of recipients.

Another difference, though in form rather than in substance, is the manner of informing users of their rights. Research has shown that formats of privacy policies could influence users' reading time and comprehension of privacy policies.[53] While each of the privacy policies does so, the US privacy policy is unique in showing the rights—and the matter of their exercise—through a handful of large paragraphs, without individual sections listing the rights and their use (See Figure 1). In comparison, the EU and Chinese policies list the rights in subsections which distinguish and facilitate a user's attention grabbing; each of the rights, for instance, to delete or rectify information, is indicated in bold and on a separate line (in EU policy and see Figure 2) or appear in bold in a subsection title (in CN policy and see Figure 3). However, Douyin's privacy policy groups certain rights (to 'view, correct, supplement and delete your personal information' in 3.2 of the policy) in the same subsection while leaving the others in separate subsections (eg replicate and transfer your information in 3.3). In conclusion, the variations and nuances observed in these policies highlight the complexities of addressing transparency requirements for companies in privacy practices to fulfil compliance in different regions.

User perceptions of transparency

Research design and methodology

To gain comprehensive insights into user perspectives on transparency across the EU, California, and China, we designed two open-ended questions in a survey study for social media users in those regions. We opted for open-ended survey questions because it allowed us

53 McDonald and others (n 36).

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Your Rights

You may submit a request to know, access, correct or delete the information we have collected about you at https://www.tiktok.com/legal/report/privacy ↗. You may appeal any decision we have made about your request by following the instructions in the communication you receive from us notifying you of our decision. You may also exercise your rights to know, access, correct, delete, or appealby sending your request to the physical address provided in the "Contact Us→" section below. You can also update your account information directly through your in-app settings, as well as request a copy of your TikTok data or request to deactivate or delete your account. Your right to know includes what personal information we have collected about you, including the categories of sources from which the personal information is collected, the business or commercial purpose for collecting or sharing personal information, the categories of third parties to whom we share the personal information, and the specific pieces of personal information we have collected about you. We do not discriminate based on the exercise of any privacy rights that you might have.

You may be entitled, in accordance with applicable law, to submit a request through an authorized agent. To designate an authorized agent to exercise choices on your behalf, please provide evidence that you have given such agent power of attorney or that the agent otherwise has valid written authority to submit requests to exercise rights on your behalf. We will respond to your request consistent with applicable law and subject to proper verification. We will verify your request by asking you to send it from the email address associated with your account or to provide information necessary to verify your account.

The metrics for requests to access, correct, and delete received by TikTok during the previous calendar year can be found here ↗.

While some of the information that we collect and use may constitute sensitive personal information, we only process such information in order to provide the Platform and within other exemptions under applicable law. For example, we may process your financial information in order to provide you the goods or services you request from us or your driver's license number in order to verify your identity.

Figure 1. Screenshot of TikTok's US privacy policy on user rights.

to reach a relatively large number of participants and to gather a broad spectrum of perceptions from participants regarding transparency, compared to other qualitative methods.[54] The insights from participants might then reveal patterns of perceptions on transparency among social media users from the three regions. The study was carried out between March and July of 2023, utilizing two research recruitment platforms, with participants receiving compensation for their participation. Ethical approval for the study was obtained from the researchers' university ethical review committee.

In the survey, participants were instructed to rank various section titles (eg 'How We Share Your Information') of a privacy policy based on their level of concern, from highest to lowest, without knowing the section titles were based on the privacy policies of TikTok from respective jurisdictions. The questions were presented after participants viewed and ranked their most concerned sections of TikTok's privacy policy in their respective regions. The questions were formulated in English for EU and California users: 'In privacy protection, transparency is … ' and 'What made you answer the previous question that way?' For Chinese users, the questions were presented in Chinese: '在隐私保护中, 透明原则是 … ' and '是什么让你回答上一个问题的？'. To ensure the quality and comprehensibility of the Chinese translation, two native Chinese speakers validated the translation. The objective of these questions was to evaluate participants' comprehension of transparency within the context of privacy protection. By utilizing open-text questions, our intention was to directly capture participants' insights and delve into their perceptions concerning transparency. Furthermore, the study aimed to conduct a comparative analysis of the perceptions and factors related to transparency among social media users in the three distinct regions.

For the EU part of our study, we specifically recruited German participants. This choice was guided by Germany's rigorous privacy protection framework, encompassing both federal-level regulations like the

54 Virginia Braun and others, 'The Online Survey as a Qualitative Research Tool' (2021) 24/6 International Journal of Social Research Methodology 641.

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Your Rights and Choices

You have rights and choices when it comes to your information. Some of these rights apply generally, while others will only apply in certain circumstances. Depending on the scenario, these rights may be subject to some limitations. TikTok Ireland will be responsible for responding to your request within the relevant periods provided by law. If necessary to resolve your request, TikTok Ireland will liaise with TikTok UK.

Access your information. You can ask us, free of charge, to confirm what information we process about you, to provide certain information about the processing, and for a copy of your information. In-app controls enable you to:

- access your information that is available to other users when you navigate to the "**me**" tab on your account.
- request a copy of your information by using the "**Download your data**" tool. Click here ↗ for detailed instructions.

Delete your information. You can delete or ask us to delete some or all of your information. In-app controls enable you to:

- delete the content posted on your profile, such as your User Content → and your Profile Information → .
- delete your full account. Click here ↗ for detailed instructions.
- request the deletion of a particular piece of content using the in-app reporting feature (more information is available here ↗).

Rectify your information. You can change or ask us to change or correct your information where that information is not accurate. You can change or correct much of your information through the in-app controls and settings (such as your Profile Information → and video content).

Port your information. You have the right to data portability in circumstances where we rely on contractual necessity or consent as our legal basis. This means that you have the right to receive your information in a structured, commonly used, and machine-readable format and to share it with a third party. You can exercise your right of portability by choosing to "**Download your data**" in your settings. Click here ↗ for detailed instructions.

Figure 2. Screenshot of part of TikTok's EU privacy policy on user rights.

Federal Data Protection Act and sector-specific legislation such as the Telecommunications-Telemedia Data Protection Act.[55] The selection of German participants was also influenced by the country's deep-seated culture of valuing privacy and upholding the rule of law.[56] Additionally, Germany's significant population within the EU further rendered it an appropriate representation for this study. In the US, given the California Consumer Privacy Act's status as a state statute, we focused on recruiting participants who were residents of California. We managed to have approximately 50 per cent female and 50 per cent male participants for this study. In total, our study recruited 217 participants from China, 207 participants from Germany, and 194 participants from California after excluding responses from participants who failed the attention checks.

The responses were then analysed using reflexive thematic analysis on Atlas.ti. The thematic analysis in this study followed steps by Braun and Clarke, including data familiarization, initial code generation, themes searching, themes reviewing, themes defining and reviewing, and report producing.[57] As emphasized by Braun and Clarke, reflexive thematic analysis involves a reflexive engagement with the data, allowing for the exploration and interpretation of both explicit and latent themes that emerge from the codes.[58] Throughout the

55 Federal Data Protection Act (Bundesdatenschutzgesetz—BDSG) (Germany) 2017; Telecommunications-Telemedia Data Protection Act (TTDSG) (Germany) 2021.

56 David H Flaherty, *Protecting Privacy in Surveillance Societies: The Federal Republic of Germany, Sweden, France, Canada, and the United States* (UNC Press Books, Chapel Hill, NC, U.S. and London, U.K., 1989); James Q Whitman, 'The Two Western Cultures of Privacy: Dignity versus Liberty' (2004) 113 The Yale Law Journal 1151.

57 Virginia Braun and Victoria Clarke, 'Using Thematic Analysis in Psychology' (2006) 3 Qualitative Research in Psychology 77.

58 Virginia Braun and Victoria Clarke, 'Can I Use TA? Should I Use TA? Should I Not Use TA? Comparing Reflexive Thematic Analysis and Other Pattern-based Qualitative Analytic Approaches' (2021) 21 Counselling and Psychotherapy Research 37.

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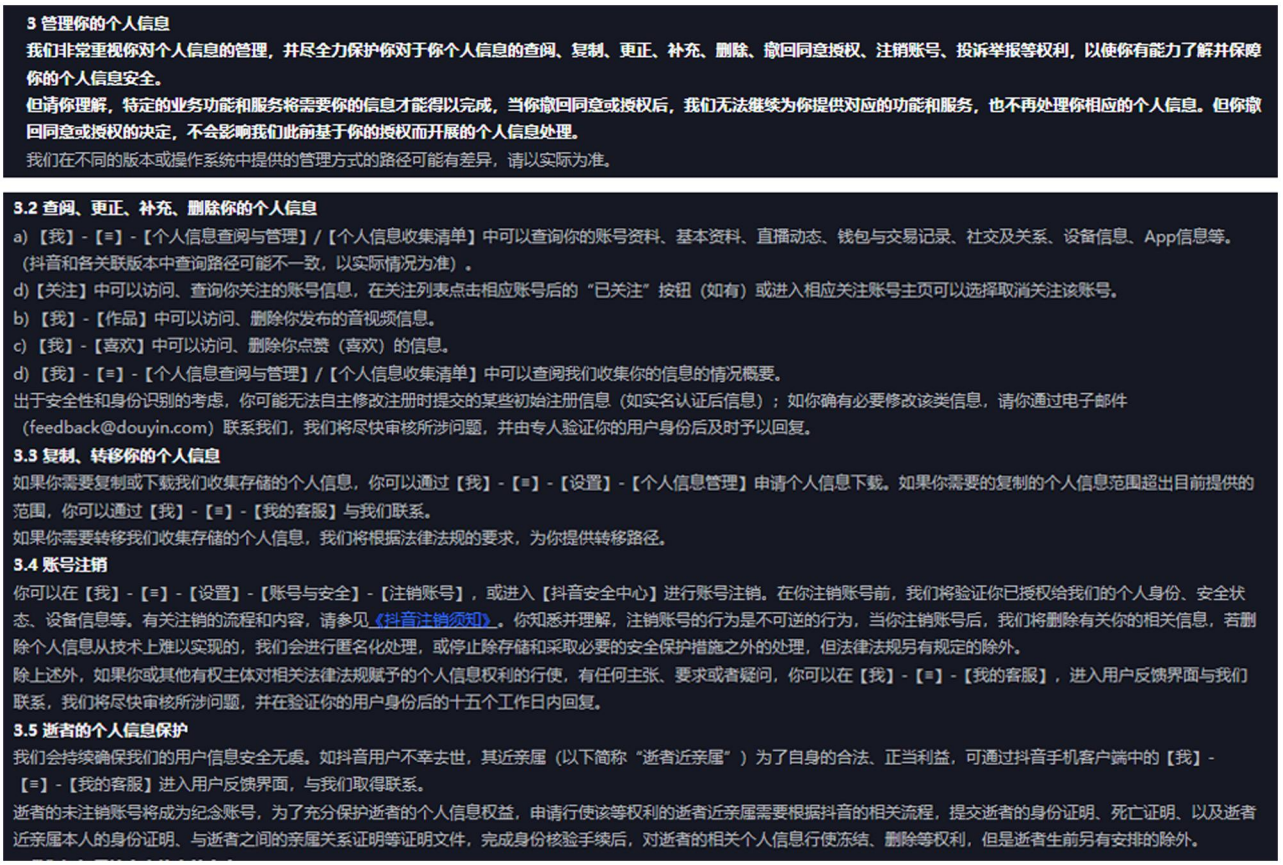

3 管理你的个人信息

我们非常重视你对个人信息的管理，并尽全力保护你对于你个人信息的查阅、复制、更正、补充、删除、撤回同意授权、注销账号、投诉举报等权利，以使你有能力了解并保障你的个人信息安全。

但请你理解，特定的业务功能和服务将需要你的信息才能得以完成，当你撤回同意或授权后，我们无法继续为你提供对应的功能和服务，也不再处理你相应的个人信息。但你撤回同意或授权的决定，不会影响我们此前基于你的授权而开展的个人信息处理。

我们在不同的版本或操作系统中提供的管理方式的路径可能有差异，请以实际为准。

3.2 查阅、更正、补充、删除你的个人信息

a)【我】-【≡】-【个人信息查阅与管理】/【个人信息收集清单】中可以查询你的账号资料、基本资料、直播动态、钱包与交易记录、社交及关系、设备信息、App信息等。（抖音和各关联版本中查询路径可能不一致，以实际情况为准）。

d)【关注】中可以访问、查询你关注的账号信息，在关注列表点击相应账号后的“已关注”按钮（如有）或进入相应关注账号主页可以选择取消关注该账号。

b)【我】-【作品】中可以访问、删除你发布的音视频信息。

c)【我】-【喜欢】中可以访问、删除你点赞（喜欢）的信息。

d)【我】-【≡】-【个人信息查阅与管理】/【个人信息收集清单】中可以查阅我们收集你的信息的情况概要。

出于安全性和身份识别的考虑，你可能无法自主修改注册时提交的某些初始注册信息（如实名认证后信息）；如你确有必要修改该类信息，请你通过电子邮件（feedback@douyin.com）联系我们，我们将尽快审核所涉问题，并由专人验证你的用户身份后及时予以回复。

3.3 复制、转移你的个人信息

如果你需要复制或下载我们收集存储的个人信息，你可以通过【我】-【≡】-【设置】-【个人信息管理】申请个人信息下载。如果你需要的复制的个人信息范围超出目前提供的范围，你可以通过【我】-【≡】-【我的客服】与我们联系。

如果你需要转移我们收集存储的个人信息，我们将根据法律法规的要求，为你提供转移路径。

3.4 账号注销

你可以在【我】-【≡】-【设置】-【账号与安全】-【注销账号】，或进入【抖音安全中心】进行账号注销。在你注销账号前，我们将验证你已授权给我们的个人身份、安全状态、设备信息等。有关注销的流程和内容，请参见《抖音注销须知》。你知悉并理解，注销账号的行为是不可逆的行为，当你注销账号后，我们将删除有关你的相关信息，若删除个人信息从技术上难以实现的，我们会进行匿名化处理，或停止除存储和采取必要的安全保护措施之外的处理，但法律法规另有规定的除外。

除上述外，如果你或其他有权主体对相关法律法规赋予的个人信息权利的行使，有任何主张、要求或者疑问，你可以在【我】-【≡】-【我的客服】，进入用户反馈界面与我们联系，我们将尽快审核所涉问题，并在验证你的用户身份后的十五个工作日内回复。

3.5 逝者的个人信息保护

我们会持续确保我们的用户信息安全无虞。如抖音用户不幸去世，其近亲属（以下简称“逝者近亲属”）为了自身的合法、正当利益，可通过抖音手机客户端中的【我】-【≡】-【我的客服】进入用户反馈界面，与我们取得联系。

逝者的未注销账号将成为纪念账号，为了充分保护逝者的个人信息权益，申请行使该等权利的逝者近亲属需要根据抖音的相关流程，提交逝者的身份证明、死亡证明、以及逝者近亲属本人的身份证明、与逝者之间的亲属关系证明等证明文件，完成身份核验手续后，对逝者的相关个人信息行使冻结、删除等权利，但是逝者生前另有安排的除外。

Figure 3. Screenshot from Douyin's privacy policy where user rights are presented in bold in the summary of Section 3 and where in bold in subsection titles when explained in detail (3.2–3.5).

iterative process, we critically examine and revisit the codes and themes, ensuring they capture the complexity and depth of the responses, and refining them to achieve a comprehensive understanding of participants' perception of transparency.

Results

We mapped the results by region and extracted the major themes mentioned in the responses. We then classified the overarching themes into sub-themes and extracted major keywords that participants used in the discussion. The following table (Table 3) provides an overview of the findings which will be discussed for each region below individually:

Definition of transparency from a user's perspective

When being asked what transparency means, participants from all three regions used some descriptions to convey what the meaning of transparency should entail or how transparency measures, such as a privacy policy, should be designed. In Table 4 below, we listed the most frequent terms used by participants to define transparency. Across the three regions, participants shared a common understanding of transparency as clarity, openness (openness and transparency used by Chinese users), and understandability. EU and California participants further shared truthfulness, honesty, and thoroughness. EU participants take transparency as availability and accessibility which is not resonated by participants from California or China, while California and Chinese users shared explainability. Diverging from the concept of explainability in AI or human–computer interaction literature, which emphasizes 'the ability for the human user to understand the agent's logic',[59] the notion of explainability as perceived by participants in our survey is characterized as the quality that the data processing of a data processor shall be explained to a user. For example, Participant 63 from California

59 Avi Rosenfeld and Ariella Richardson, 'Explainability in Human–agent Systems' (2019) 33 Autonomous Agents and Multi-Agent Systems 673, 675.

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Table 3. Overview of themes emerged from the three regions.

Region	Overarching themes	Sub-themes	Discussion
EU	Definition	Transparency of data processing activities	See Table 4 below
	Instrument	Trust	Benefits of trust for companies
		Knowledge	Users' knowledge about data processing by companies
		Control	(Informed) decision-making
		Assurance	Perceived security
	Cynicism	Distrust/Dissatisfaction with current transparency measures	
CA	Definition	Communication	See Table 4 below
		(Pre-emptive) Disclosure of data processing activities	
	Instrument	Trust	Benefits of trust for companies
		Knowledge	Users' knowledge about data processing by companies
		Understanding	User's understanding about data processing by companies
		Control	(Informed) Decision-making
	Cynicism	Distrust/Dissatisfaction with current transparency measures	
CN	Definition	Transparency of data processing activities	See Table 4 below
		PIPL & PIS Specification	Texts from the sources
	Instrument	Knowledge	Users' knowledge about data processing by companies
		Control	

defined transparency as '*the site to be clear and specifically explain what it intends to do with my information*', while Participant 172 from China perceived transparency as '公开何时获取了用户信息, 为什么要获取, 获取了用户信息是为什么' (which translates to '*Disclose when user information was obtained, why it was obtained, and for what purpose user information was obtained.*'). This conception of explainability by participants is also associated with empowerment. Participant 162 from California stated that transparency was '*letting the person know that their info is being collected and for why*'. This statement underscores participants' perception about transparency, which needs to advance beyond a company's compliance with transparency requirements specified in law in respective jurisdictions. The company needs to be able to explain to the users why they process user data in a certain way, sometimes, transcending transparency requirements.

We cross-referenced the definitions used by participants and the descriptions of transparency used by regulations in the three regions. In the EU, under Article 12 of GDPR, information related to the processing shall be provided to the data subject and by a controller in a 'concise, transparent, intelligible and easily accessible form, using clear plain language'. Hence, the definitions used by EU participants resonated with GDPR on clarity ('clear'), understandability ('pain language'), thoroughness ('concise'), and availability and accessibility ('accessible'). While the terms 'explainability' and 'openness' may not be explicitly stated, the principle of transparency in the GDPR requires organizations to provide clear and understandable information to data subjects about how their personal data is processed. This includes informing individuals, such as the purposes of processing, the legal basis for processing etc. This emphasis on transparency thus inherently incorporates the idea of companies being open about their data processing and providing explanations to individuals regarding the handling of their personal data. The notion of truthfulness is not addressed within the GDPR. Based on the responses from EU participants, truthfulness pertains to the honesty and integrity of information that companies provide to users about data processing practices. Participants highlighted instances such as

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Table 4. Definitions of transparency perceived by participants in the EU, California, and China.

Definitions of transparency	EU	CA	CN	Mentioned in respective regulations
Clarity	X	X	X	EU: Article 12 of GDPR CA: Induced from Article 1 of CPPA Regulations CN: Articles 7 and 17 of PIPL
Openness	X	X	X[a]	EU: Induced US: Induced CN: Article 7 of PIPL
Explainability		X	X	EU: Induced CA: Article 2 of CPPA Regulations on individual rights CN: Induced
Understandability	X	X	X	EU: Article 12 of GDPR CA: Article 1 (7003) of CPPA Regulations CN: Article 17 of PIPL
Truthfulness & Honesty	X	X		EU: N/A CA: N/A CN: Article 17 of PIPL
Thoroughness	X	X		EU: Article 12 of GDPR CA: Article 2 (7011)(a) of CPPA Regulations CN: Article 17 of PIPL
Availability and Accessibility	X			EU: Article 12 of GDPR CA: Article 2 (7011)(d) of CPPA Regulations CN: N/A in PIPL but 5.5 (d) of PIS Specification

[a]Phrased as 'Openness & Transparency'

'*Companies say exactly which data are collected and what is going to be done with it*' (Participant 16 from the EU) or expressed transparency as '*knowing what exactly happens with my data*' (Participant 194 from the EU).

Although conceptually linked, truthfulness is distinct from the GDPR's principle of accuracy outlined in Article 5(d). The GDPR mandates that personal data must be accurate and, where necessary, kept up to date. Companies are required to take every reasonable step to rectify or erase inaccurate personal data promptly, considering the purposes for which the data is processed. However, the accuracy referred to in the GDPR pertains to the precision of personal data itself, not necessarily the accuracy of the information disclosed by companies to users. Consequently, the concept of 'truthfulness' as perceived by EU participants appears to be absent from the explicit provisions of the GDPR.

In California, section 1798.130 (a)(5) of CPRA specifically mandates information disclosure in privacy policies. However, it focuses more on what shall be disclosed to consumers, that is, pieces of information that need to be included in a privacy policy, instead of how the disclosure shall be presented. However, under Article 1 (7003)(a) of the Regulations by CPPA, it is mandated that information provided to consumers must be easy to read and understandable, using plain and straightforward language while avoiding technical or legal jargon. Additionally, Article 2 (7011)(a) of the Regulations defines the purpose of privacy policies, requiring businesses to offer consumers a comprehensive description of their online and offline information practices, as well as informing them about their rights regarding personal information and providing the necessary information for exercising those rights.

Thus, themes of understandability ('understandable') and thoroughness ('comprehensive description') based on the responses from California participants are directly related to the words used in the Regulations by CPPA regarding transparency. While 'availability and accessibility' is not a prominent theme among California participants, the Regulations by CPPA regulate the accessibility of privacy policies under Article 2 (7011)(d). CPPA's requirement for businesses to explain to consumers about their rights in Article 2 (7011) (2) and about their exercise of those rights in in Article 2 (7011) (3) can be considered a form of 'explainability'.

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Interestingly, this duty is not explicitly listed in the GDPR or the PIPL. GDPR's Article 12(2) mandates that controllers must facilitate data subject rights but without clear instructions on what constitutes adequate facilitation. PIPL, on the other hand, does not specify active duties for data processors regarding individuals' rights covered in the law. As a result, Regulations by the CPPA is the only regulation among the three that provides clear guidance on how companies should help users understand and exercise their rights. Furthermore, CPPA's example of using plain and straightforward language in Article 1 illustrates the importance of clear communication without convolution, aligning with the 'clarity' expressed by California participants. Additionally, definition of information processing in Article 1 (7001)(o) of the Regulations covers practices related to the collection, use, disclosure, sale, sharing, and retention of personal information, demonstrating the 'openness' that companies are required to display in their information processes.

Participants in China defined transparency in two main ways: they either talked about the transparency of data processing activities, or they cited texts from PIPL or PIS Specification. 'Open and Transparent' used by Chinese participants occurs in Article 7 of PIPL and is considered one of the fundamental principles of the PIS Specification. This finding is consistent with participants who directly quoted texts from these two sources.

The most frequently cited text from the PIPL by participants was Article 7, which states that '*The principles of openness and transparency shall be observed in the handling of personal information, disclosing the rules for handling personal information and clearly indicating the purpose, method, and scope of handling*'. Participants who referenced the PIS Specification cited Article 4, which outlines the basic principles of the specification. Some participants specifically cited 4(e), which defines the principle of Openness & Transparency as '*PI Controllers shall publicly disclose the scope, purpose, and rules, inter alia, for PI processing in a clear, understandable, and reasonable manner, and accept external supervision*'. Others cited all the principles in Article 4 of the PIS Specification, including Balancing Rights with Responsibilities, Clear Purpose, Consent, Minimum Necessary, Transparency, Security, and Participation of PI subjects.

Under Article 7 of PIPL in terms of the handling of personal information, 'the principles of openness and transparency shall be observed … disclosing the rules for handling personal information and clearly indicating the purpose, method, and scope of handling'. Furthermore, in Article 17 of PIPL, it further mandates that prior to the handling of personal information, a personal information handler shall 'explicitly notify individuals truthfully, accurately, and fully of the following items using clear and easily understood language'. The definitions provided by Chinese participants concerning clarity ('clearly'), openness ('the principle of openness and transparency'), and understandability ('easily understood language') align with the provisions of PIPL. Similarly in the case of GDPR, while 'explainability' is not specifically stated in PIPL but was envisioned by the users, it can still be induced from Article 17 which requires data processors to notify individuals about the data processing as well as the rights individuals have, hence providing explanations of data processes and individual rights. The concept of 'availability and accessibility' was not identified as a prominent theme among Chinese participants regarding their definition of transparency, and it is not explicitly mentioned in the provisions of PIPL. However, 5.5(d) of the PIS Specification requires privacy policies to be publicly posted and easily accessible, complementing the absence in PIPL.

It is noteworthy that the PIPL sets forth additional requirements for transparency that were not fully recognized by Chinese participants. Specifically, Article 17 of the PIPL mandates truthfulness ('truthfully') and thoroughness ('fully') in the context of transparency, which were not encompassed in the perspectives shared by the participants.

In conclusion, the perceptions of transparency as understood by users can be traced to various provisions in the regulatory frameworks of the three regions, with some exceptions. Notably, concepts such as 'Truthfulness and Honesty' are absent in both GDPR and CPRA, while 'Availability and Accessibility' is not explicitly mentioned in PIPL but appears in PIS Specification. The implications of the absence of 'Truthfulness and Honesty' in GDPR and CPRA will be explored in the section 'Discussion'. Comparing the definitions provided by participants, it is evident that those from the EU and California largely share similar understandings of transparency, with only slight variations in the 'Explainability' and 'Availability and Accessibility' aspects. In contrast, Chinese participants offered the fewest definitions of transparency, despite PIPL providing a relatively comprehensive description of what transparency entails. This observation suggests that there might be cultural or contextual factors influencing participants' interpretations of transparency, leading to varying degrees of engagement with the concept in the three regions.

Transparency as an instrument

Participants from all three regions highlighted the instrumentality of transparency, *the quality of transparency being a means to achieve a particular purpose or goal*

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perceived by participants. For participants in the EU and California, transparency is considered to be an instrument to trust, while for participants in all three regions, transparency is considered to be instrumental to knowledge and control. In addition to the similarities, EU participants link transparency to assurance, and California participants connect trust to understanding.

Knowledge. Transparency is perceived by participants from all regions as a means to facilitate user knowledge and user control, echoed by the principle of transparency in respective frameworks. In the EU, the GDPR places significant emphasis, particularly in Articles 12–14, on the disclosure of information to users concerning the processing of their personal data by data controllers. It also mandates the provision of information regarding the existence of rights conferred to data subjects by the GDPR and instructions on how to exercise those rights. Furthermore, Articles 13–14 are related to Article 15 which specifies the right to access.[60] Combined with Articles 13 and 14, the right of access '*provides the possibility for individual data subjects to learn more about their particular situation upon request*',[61] which corroborates with the theme of facilitating user knowledge expressed by EU participants. For users in California who are residents of California, CPRA and the Regulations from CPPA mandate comprehensive disclosure of a business's online and offline information practices, along with explanations of user rights, in the privacy policy provided to users. Similarly, Article 17 of the PIPL requires data processors to provide users with information about data processing and instructions on how to exercise their entitled user rights under the PIPL. While all three regulations share the common requirement of providing users with information about *data processing* and *user rights*, our study's participants in all three regions predominantly associate user knowledge with the knowledge of data processing activities, often overlooking user rights in their perception of transparency. This finding suggests a notable discrepancy between the legal expectations and requirements on what a user is entitled to know, that is, data processing activities and a full range of user rights, and a user's perceptions of what is deemed important for users to know, highlighting the need for further exploration and alignment between regulatory expectations and user perspectives on user knowledge and transparency.

Control. To participants in the EU and California, user control sometimes displayed in the format of (informed) decision-making. While user knowledge was usually expressed by itself, sometimes, participants connect user knowledge to user control. For example, Participant 172 from the EU stated, '*Only if provided with which and what data is collected, I'm able to decide whether I agree or not.*' Here, a user's knowledge about data collection and its purposes by a service provider is deemed crucial for the user to exercise control through decision-making, with knowledge informing users before they make decisions. Participant 62 from California exemplified how user knowledge could facilitate user control, as they put it, transparency was '*very important because it allows the end user to know what is actually being collected and to opt out of using the service if desired*', indicating how user knowledge about data processing can help users exercise their right to opt-out. Chinese participants focused on how transparency can empower users' knowledge regarding the processing of their data, further facilitating their right to know about such processes. Furthermore, transparency was perceived as a means for user control, such as the ability to refuse the usage of one's data (Participant 17 from China) or understanding the scope of data collection by companies (Participants 190 and 203 from China). Across all three regions, the respective legislations have granted individuals rights that can empower users to exert greater control over their personal data. However, as indicated by the theme of knowledge discussed earlier, participants fail to connect the knowledge they should possess with their rights granted in law(s). Our result is consistent with a survey study conducted with Dutch participants, which shows that Dutch participants also could not fully recognize the rights granted in GDPR.[62] Such disconnection could result in users not fully realizing the scope of control that can be wielded through the full range of rights outlined in GDPR, CPRA, and PIPL. On the other hand, in addition to users' lack of knowledge of their rights, current data protection by design strategies used by data controllers could hinder users from exercising their rights,[63] indicating the complicated nature of why users' exercise of control can be hard to accomplish.

60 Jef Ausloos, René Mahieu and Michael Veale, 'Getting Data Subject Rights Right' (2019) 10 Journal of Intellectual Property, Information Technology & Electronic Commerce Law 283.

61 Ibid 293.

62 Joanna Strycharz, Jef Ausloos and Natali Helberger, 'Data Protection or Data Frustration? Individual Perceptions and Attitudes towards the GDPR' (2020) 6 European Data Protection Law Review 407.

63 Michael Veale, Reuben Binns and Jef Ausloos, 'When Data Protection by Design and Data Subject Rights Clash' (2018) 8 International Data Privacy Law 105.

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Trust. According to the Opinion by the WP29, transparency 'is about engendering trust in the processes which affect the citizen by enabling them to understand, and if necessary, challenge those processes'.[64] In this sense, transparency perceived by the users aligns with the expectation of WP29 on transparency, that is, to build trust between the data subjects and the data controller. However, while WP29 expects transparency to enable citizens to understand the processes, such an element is missing from EU participants in their responses. Rather, 'understanding' is replaced by participants' knowledge of the data processing activities, while WP29's expectation of 'citizens challenging the processes if necessary' is replaced by a different form of control by EU participants, decision-making. In literature, a discussion exists regarding the distinction between knowledge and understanding. For example, Strevens contends that understanding is an act of grasping the correct explanation of a phenomenon, which goes beyond just knowing the phenomenon.[65] And O'hara argued that understanding transcends a state of knowledge, asserting that to engender knowledge in a person requires more than a mere transmission of knowledge, but rather requires a consideration of the status quo of the person, such as their existing knowledge or capacities.[66] In addition, a person who understands should be able to do more than repeating the knowledge received, but to engage the knowledge such as applying it to different contexts or to criticize it. While GDPR (as well as CPRA and PIPL) specifies the rights of individuals such as the right of access, the right to erasure, and the right to data portability, participants in the survey did not seem to be aware of the full range of rights at their disposal that enable them to challenge the data processing, as expected by WP29. In this vein, the goal of transparency envisioned by WP29 seems to be downgraded, potentially due to individuals' lack of awareness of the full range of user rights and the ineffectiveness of current transparency measures, as expressed by some EU participants in their dissatisfaction with existing transparency measures.

Similar to EU participants, California participants took transparency as a means to build trust between users and companies. Trust would be beneficial to companies: User trust is associated with customer retention and brand loyalty.[67] Participant 23 from California believed that the loss of trust from consumers means the loss of business for a company. Moreover, users can also benefit from companies that build trust with users. A trustworthy company through transparency could minimize user risks as indicated from the response of Participant 202. They considered transparency to be *'very important as to whether or not I will trust that company enough to do business with them … if you happen to deal with an untrustworthy site, it can really affect your entire life in a very negative way'*. Compared to EU and California participants, participants in China only interpret transparency as an instrument to user knowledge and control, absence of the theme of trust with their understanding of transparency.

In the texts of GDPR, CPRA, and PIPL, trust is not mentioned. Instead, privacy is taken as a right and the regulations emphasize the rights individuals have to exercise control over their personal information. Such an idea resonates with how privacy is recognized as a fundamental human right.[68] Waldman further considers the rights individuals have to decide the disclosure of their personal information as 'the rights conceptions of privacy'.[69] The theme of transparency as trust from EU and California participants extends beyond the rights conceptions of privacy, and rather resonates with a different strand of legal literature that vows for a reconceptualization of privacy as trust. We will further discuss it in the subsection 'Transparency as truthfulness and honesty'.

Assurance and understanding. In the context of transparency as perceived by EU participants, assurance emerged as a theme and is characterized as the sense of security experienced by users. Analysis of the responses suggests that assurance is closely linked to users' trust in service providers. With trust serving as a prerequisite, users can feel confident that their privacy is safeguarded, and their personal data remains secure in the hands of companies. For instance, Participant 144 stated that transparency is *'important to ensure users that their privacy is protected, Because I believe that transparency is indeed important and would help many people who maybe do not truly understand how their data is being*

64 See WP29 2018, 4.

65 Michael Strevens, 'No Understanding without Explanation' (2013) 44/3 Studies in History and Philosophy of Science Part A 510.

66 Kieron O'Hara, 'Explainable AI and the Philosophy and Practice of Explanation' (2020) 39 Computer Law & Security Review 105474.

67 Salama S Alkitbi and others, 'Factors Affect Customer Retention: A Systematic Review' in Aboul Ella Hassanien and others (eds), *Proceedings of the International Conference on Advanced Intelligent Systems and Informatics 2020* (Springer, Cham, Switzerland, 2021); Arjun Chaudhuri and Morris B Holbrook, 'The Chain of Effects from Brand Trust and Brand Affect to Brand Performance: The Role of Brand Loyalty' (2001) 65 Journal of Marketing 81; Cleopatra Veloutsou, 'Brand Evaluation, Satisfaction and Trust as Predictors of Brand Loyalty: The Mediator-Moderator Effect of Brand Relationships' (2015) 32 Journal of Consumer Marketing 405.

68 Daniel J Solove, *Understanding Privacy* (Harvard University Press, Cambridge, MA, U.S., 2010) 3.

69 Ari Ezra Waldman, *Privacy as Trust: Information Privacy for an Information Age* (CUP, New York, NY, U.S., 2018) 5.

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used to be at ease'. It is essential to acknowledge that assurance reflects the perceived security that users experience, yet it does not necessarily confirm the presence of actual security measures for protection implemented by companies. To California participants, transparency is also a means to the understanding of data processes, which can be seen as a step further in knowing data processing activities and towards a better control of a user's own data. Participant 42 stated that transparency was '*very important for understanding what a company is actually doing with any data it collects from you*'.

Cynicism toward transparency requirements

In the majority of EU and California participants, transparency was considered important with 92 California participants and 74 EU participants explicitly describing transparency as 'important', 'crucial' and other synonyms; however, some expressed cynicism towards it. This transparency cynicism, akin to privacy cynicism, reflected users' feelings of uncertainty, powerlessness, mistrust, and a perception of lack of transparency.[70] From the EU response, Participant 12 believed transparency was crucial for privacy protection but perceived the current situation as the opposite. Based on their own experiences, Participant 12 stated, '*I do not have from any website a statement which information has been collected and how such information is used and if I agree or disagree with such usage. My impression is that many companies collect data and use it to generate profit for themselves, e.g., by using such information to generate ads income*'. Participant 12 not only perceived a lack of transparency but also felt a loss of control over their data and its usage. Participant 23 of the EU survey echoed similar sentiments, stating that transparency was not given due to the perceived time-consuming nature of considering and attending to transparency on every website visited.

Transparency cynicism is also echoed among California participants, who perceived transparency as '*fake*', '*a lie*', '*impossible*', '*never sought out*', and '*never going to happen*'. As expressed by Participant 183 from California, transparency is seen as '*fake and created to make the consumer gain a false sense of security. Privacy laws are not enforced*'. They further explained the basis of such cynicism, that '*there is a reason the NSA (National Security Agency) had a whistleblower (Snowden). The public knows that if the government wants to track any internet user, they can and do not abide by laws to do so*'.

Associated with cynicism are the themes of distrust and dissatisfaction with current transparency measures. The distrust and dissatisfaction seem to be participants' reactions and frustrations with current transparency measures available, and the reasons for their dissatisfaction are closely related to how the measures failed the definitions of transparency perceived by users. Due to the high convergence between users' definitions and the description of transparency in regulations, it would also mean that the measures would fail to comply legally as well, from the perspective of individual users.

Participant 165 from the EU explained their dissatisfaction, '*because I find that information about privacy is often not very transparent; for example, there are companies trying to hide critical information within a very large number of paragraphs that are tiring to read*'. In this case, the disclosure would not only fail the user's understanding of transparency as truthfulness and honesty but also fail Article 12 of GDPR for not being concise or transparent. Participant 15 from the California sample similarly stated that '*it's very hard to understand what I am agreeing to in terms of data collection when I have to read through thousands of legal jargon to find it*'. From the perspective of Participant 15, many information disclosures would fail Article 1 (7003)(a) of the Regulations by CPPA, due to their nature of hard-to-read and incomprehensible disclosures using legal jargon. In the case of Participant 150 from California, '*because I think many companies try to word things in a way that allows them to selectively reveal certain information regarding their practices, without giving the whole truth*', which would be a failure of Article 2 (7011)(a) of the Regulations on thoroughness, and the user's understanding of transparency as truthfulness and honesty.

While transparency such as a privacy policy might be compliant with regulations, fulfilling the transparency requirements, there seems to be a discrepancy between the transparency compliance by companies and the reception of the transparency in the policy by users. As a result, users might not consider the privacy policy to be transparent, even though the policy might be compliant with relevant laws and regulations.

Discussion

Discrepancy between user's understanding of transparency and legal requirements

Transparency as truthfulness and honesty

Based on our empirical research, several concepts associated with transparency, such as openness, clarity, and

70 Christian Pieter Hoffmann, Christoph Lutz and Giulia Ranzini, 'Privacy Cynicism: A New Approach to the Privacy Paradox' (2016) 10/4 Cyberpsychology: Journal of Psychosocial Research on Cyberspace, art 7.

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thoroughness, demonstrate convergence with the legal principles outlined in GDPR and CPRA concerning data processing activities. Nevertheless, a discernible discrepancy arises between the stipulated definition of transparency in these regulations and users' perceptions, which consider transparency as the embodiment of truthfulness and honesty. While the focus of GDPR and CPRA centres on providing individuals with information pertaining to data processing, truthfulness and honesty seem to encompass a deeper ethical commitment for companies, surpassing mere compliance with regulatory requirements. For example, Caudill and Murphy consider a company's obligation to tell the truth as a duty of fidelity, an ethical duty not a legal one.[71] In addition, truthfulness is sometimes not considered to be an intrinsic or instrumental value for businesses,[72] disincentivizing such practice for business. In addition, 'truth-telling' as an ethical requirement is a delicate practice that requires specific skills for a leader of a business to possess and practice.[73] In comparison to truthfulness and honesty, other definitions perceived by users (eg clarity, see Table 4) are relatively more straightforward for companies to interpret and practice through privacy policies. By comparison, truthfulness and honesty might pose practical challenges for companies to practise.[74]

In contrast, Chinese users display relatively fewer conceptualizations of transparency compared to the ones that are clearly stipulated in the PIPL, such as transparency and thoroughness. This observation might partially be explained by Chinese participants' lack of association between trust and transparency. Previous research indicates that individuals in China do not trust the privacy practices of private sector enterprises and some public services.[75] Furthermore, Chinese consumers, in general, exhibit distrust towards privacy policies displayed on company websites[76] and have expressed concerns about privacy regarding third-party apps when using smart speakers.[77] Although trust appears to be a significant factor influencing Chinese users' perceptions and privacy-related concerns, our survey responses suggest that Chinese users do not seem to establish a link between trust and transparency concerning privacy protection. Consequently, the instrumental role of transparency in fostering user trust with companies appears to be missing.

Transparency as an instrument to trust and its benefits to both users and companies

While participants from the EU and California consider transparency as a means to build trust between users and companies, this notion deviates from the specific mandates outlined in GDPR, CPRA, and PIPL. These legislative frameworks primarily emphasize the rights of individuals and the obligation of companies to disclose their data processing practices. However, the concept of trust resonates with a specific strand of legal scholarship in privacy, which advocates for redefining privacy as trust.[78] Waldman characterizes trust as '*favorable expectations as to the behavior of others*'.[79] When a company violates privacy, it also breaches the expectations individuals place upon that company, thus eroding trust. In this context, transparency assumes a role in either sustaining or establishing trust between individuals and companies. Moreover, to accommodate privacy as trust, a reimagining of the understanding of transparency becomes necessary. As Richards and Hartzog assert, '*transparency becomes more effective and inclusive if re-conceptualized as an obligation of honesty*'.[80] This literature elucidates the incongruity between privacy laws and user perceptions in our study, explaining the absence of truthfulness and honesty, as perceived by users, in GDPR and CPRA. Additionally, it sheds light on the absence of transparency as a crucial instrument for fostering trust in the aforementioned privacy legislation across the three regions. These perspectives from participants represent a fundamentally different school of thought on privacy compared to the frameworks of GDPR, CPRA, and PIPL.

71 Eve M Caudill and Patrick E Murphy, 'Consumer Online Privacy: Legal and Ethical Issues' (2000) 19 Journal of Public Policy & Marketing 7.

72 Lubomira Radoilska, 'Truthfulness and Business' (2008) 79 Journal of Business Ethics 21.

73 Jean-Philippe Bouilloud, Ghislain Deslandes and Guillaume Mercier, 'The Leader as Chief Truth Officer: The Ethical Responsibility of 'Managing the Truth' in Organizations' (2019) 157 Journal of Business Ethics 1.

74 Ibid.

75 Zhong Wang and Qian Yu, 'Privacy Trust Crisis of Personal Data in China in the Era of Big Data: The Survey and Countermeasures' (2015) 31 Computer Law & Security Review 782.

76 Ruilin Zhu, Aashish Srivastava and Juliana Sutanto, 'Privacy-Deprived E-Commerce: The Efficacy of Consumer Privacy Policies on China's E-Commerce Websites from a Legal Perspective' (2020) 33 Information Technology & People 1601.

77 Yu-Li Liu and others, 'Privacy in AI and the IoT: The Privacy Concerns of Smart Speaker Users and the Personal Information Protection Law in China' (2022) 46/7 Telecommunications Policy 102334.

78 Neil M Richards and Woodrow Hartzog, 'Taking Trust Seriously in Privacy Law' (2016) 19 Stanford Technology Law Review 431; Ari Ezra Waldman, 'Privacy as Trust: Sharing Personal Information in a Networked World' (2015) 69 University of Miami Law Review 559.

79 Ibid 606.

80 Richards and Hartzog (n 78) 436.

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The trust that transparency engenders not only benefits users but also yields advantages for companies. Conversely, a perceived lack of privacy and distrust can detrimentally impact a company or service.[81] As articulated by some participants from the EU and California, transparency is viewed as '*key to building a good relationship with the customer*' (Participant 105 from California) and '*the best way to inspire trust and build a long-term relationship with your users*' (Participant 178 from California). The absence of trust can lead to adverse consequences, as expressed by one participant from the EU (Participant 10) who contends that '*a platform has no user base*' without trust, and Participant 178 from California remarks that it '*makes people suspicious and reluctant to do business with you*'. Based on participants' responses, transparency serves as a value-creating mechanism for all stakeholders: users gain knowledge and control over their data, and trust facilitated by transparency, at the same time companies are able to retain their user base and potentially foster user loyalty.

Participants' association of user trust and user loyalty also resonates with the literature that proposes the implementation of a duty of loyalty based on the concept of privacy as trust, wherein '*trusted parties must make their own interests subservient to those made vulnerable through the extension of trust*'.[82] This duty of loyalty would primarily manifest as a prohibition on designing tools and processing data in a manner that conflicts with the best interests of the trusting party. This suggests that companies engaged in user data processing must not act against the best interests of users who trust them with their personal data for collection and processing. Similarly, Balkin advocates for the imposition of fiduciary principles on companies handling personal data.[83] According to Balkin, these principles encompass three primary duties: a duty of confidentiality, a duty of care, and a duty of loyalty. Similar to the duty of loyalty raised by Richards and Hartzog, the duty of loyalty by Balkan mandates that '*digital companies may not manipulate end users or betray their trust*'.[84] Integrating fiduciary duties or the duty of loyalty into existing regulations would align with the privacy as trust perspectives expressed by participants and establish accountability for companies in upholding the trust bestowed upon them by users. However, a question emerges regarding the need and appropriateness of adopting the fiduciary or loyalty approach to the existing framework of transparency and privacy. Future research could delve further into exploring the necessity or non-necessity of the fiduciary or loyalty approach to transparency and privacy.

Transparency cynicism and how to counter it

Cynicism as a theme is identified in the responses of EU and California participants in our survey. EU and California participants' expression of cynicism often stems from their frustrations while engaging with existing transparency measures, perceptions about companies' prioritization of monetization over robust user data protection and about partial concealment about a company's data processing from their users. Such frustration coined the definition of cynicism as '*an attitude toward an object accompanied by frustration, hopelessness, and disillusionment*'.[85] Such cynicism observed in our participants is corroborated by existing research on privacy cynicism in the respective regions.[86] Interestingly, research has shown that privacy cynicism was found and it mediated Chinese users' intent to use facial recognition services,[87] although responses of Chinese participants in our survey did not exhibit cynicism towards transparency. This absence of cynicism could potentially be explained in two ways. The first is when we presented our questions to Chinese participants asking what transparency was in privacy protection, the participants answered their understanding of an ideal state of transparency, of what they think transparency ought to be in privacy protection. Alternatively, the absence of cynicism could stem from Chinese participants' limited association between transparency to privacy and privacy protection, similar to their lack of association between transparency and trust discussed in the subsection 'Discrepancy between user's understanding of transparency and legal requirements'.

Furthermore, it is important to point out that there are no observed uniformed sources of cynicism in our

81 Kevin KW Ho, Dickson KW Chiu and Kristina LC Sayama, 'When Privacy, Distrust, and Misinformation Cause Worry About Using COVID-19 Contact-Tracing Apps' (2023) 27/2 IEEE Internet Computing 7; Kirsten Martin, 'Breaking the Privacy Paradox: The Value of Privacy and Associated Duty of Firms' (2020) 30/1 Business Ethics Quarterly 65.

82 Neil M Richards and Woodrow Hartzog, 'A Duty of Loyalty for Privacy Law' (2021) 99 Washington University law Review 961.

83 Jack M Balkin, 'The Fiduciary Model of Privacy' (2020) 134 Harvard Law Review Forum 11.

84 Ibid 14.

85 Hanbyul Choi, Jonghwa Park and Yoonhyuk Jung, 'The Role of Privacy Fatigue in Online Privacy Behavior' (2018) 81 Computers in Human Behavior 42, 43.

86 Christoph Lutz, Christian Pieter Hoffmann and Giulia Ranzini, 'Data Capitalism and the User: An Exploration of Privacy Cynicism in Germany' (2020) 22 New Media & Society 1168; Iris van Ooijen, Claire M Segijn and Suzanna J Opree, 'Privacy Cynicism and Its Role in Privacy Decision-Making' (2022) 51/2 Communication Research 146.

87 Tu Lyu, Yulin Guo and Hao Chen, 'Understanding People's Intention to Use Facial Recognition Services: The Roles of Network Externality and Privacy Cynicism' (2024) 37/3 Information Technology & People 1025.

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survey results (See the subsection 'Results'), which Law cannot take into account if it wants to alleviate transparency cynicism based upon various, even potentially very personal, reasons or beliefs. In the case of mandated disclosure, a one-size-fit-all approach applies where all consumers will receive the same information regardless of its relevance to individual consumers.[88] Likewise, within the frameworks of GDPR, CPRA, and PIPL, individuals within a specific jurisdiction are provided with the same standardized privacy policy from a given company. Nevertheless, the adequacy and trustworthiness of a privacy policy that adheres to legal transparency requirements can vary among individuals. While one person may find such a policy sufficient and trustworthy, another person might remain unconvinced by the same policy due to individual differences. For instance, a study by Chen and Sundar demonstrates that users' perceived information transparency positively correlates with their trust in mobile applications,[89] yet trust can also be influenced by other factors, including individual differences. Research conducted by Bansal and other illustrates that an individual's trust and willingness to disclose personal information are influenced by personality traits and privacy concerns, moderated by their sensitivity to context.[90] Future research could delve into the extent to which individual differences impact users' assessments of the trustworthiness and adequacy of privacy policies.

As a result, privacy law may struggle to provide comprehensive guidelines that uniformly encompass differences in individuals concerning transparency. Laws such as the 'Shine the light' in California might not achieve its goals to everybody as it does not account to different pre-existing beliefs or concerns users have regarding transparency. Disciplines such as human–computer interaction have started to explore personalized ways to present disclosures, tailoring to the needs of each individual.[91] Interestingly these discussions of personalization have also become apparent in the legal discourse, where legal scholars have been advocating for the potential benefits[92] as well as downsides[93] of personalization of legal norms such as transparency requirements. In fact, if we want to address individual characteristics such as personal beliefs about transparency when countering transparency cynicism, future research could investigate the legality of personalizing transparency disclosure to achieve maximum transparency for each individual, and whether personalization of transparency is wanted or feasible in law.

Limitations

Limitations stem from the empirical study part of this research. We recruited participants through recruitment platforms who willingly and voluntarily accepted the survey invites and answered the survey. As a result, our groups of respondents may not be representative of social media users in general in the three regions, especially the demographic of TikTok users. Additionally, our recruitment in the EU focused solely on German participants to represent the EU population. This approach, however, cannot capture the full diversity and nuances of the broader European Union population. In addition, we opted for open-text questions for users to express their perception of transparency in privacy protection, which compared to other qualitative methods such as interviews or focus groups does not yield the most detailed, nuanced or deepest response from participants, even though we are able to reach out to a larger number of participants compared to interviews or focus groups.

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Appendix Table A. Comparison of the GDPR and the privacy policy of TikTok for EU.

Required information types in WP 29 based on Article 13 or 14 of the GDPR	Corresponding section in the privacy policy for the EU
The identity and contact details of the controller and, where applicable, their representative	Contact us
Contact details of the data protection officer, where applicable	Contact us
The purpose and legal basis of the processing	Our legal bases and how we process your information
Where legitimate interests (Article 6.1(f)) is the legal basis for the processing, the legitimate interests pursued by the data controller or a third party	Our legal bases and how we process your information
Categories of personal data concerned	What information we collect How we use your information
Recipients (or categories of recipients) of the personal data	How we share your information
Details of transfers to third countries	Our global operations and data transfers
The storage period (or if not possible, criteria used to determine that period)	Data security and retention
The rights of the data subject	Your rights and Choices
Where processing is based on consent (or explicit consent), the right to withdraw consent at any time	Our legal bases and how we process your information
The right to lodge a complaint with a supervisory authority	Your rights and Choices
Whether there is a statutory or contractual requirement to provide the information or whether it is necessary to enter into a contract or whether there is an obligation to provide the information and the possible consequences of failure.	Data security and retention Our legal bases and how we process your information
The source from which the personal data originate, and if applicable, whether it came from a publicly accessible source	Under What information we collect with 'Information From Other Sources'
The existence of automated decision-making including profiling and, if applicable, meaningful information about the logic used and the significance and envisaged consequences of such processing for the data subject	Not available

Conclusion

The examination of laws and transparency practices in the context of privacy policies reveals several noteworthy findings. Firstly, there is a substantial level of convergence among transparency requirements in the legal frameworks of the three regions, with GDPR from the EU being the most comprehensive. China with its PIS Specification stands out for providing clear guidelines on the formatting of privacy policies, making it easier for TikTok to comply. For privacy policy requirements in the EU and the USA, the EU's WP29 Guidelines emphasize compliance with Articles 13 or 14 for privacy policies, while CPRA requirements highlight the inclusion of user rights in privacy policies, indicating different emphases of the two regulations. This high convergence in the sections of privacy policies across all regions and their alignment with transparency requirements in legal frameworks indicates a good level of compliance with the law. Notably, the privacy policy in China more or less employs the same wording as the PIPL, specifically in terms of data breach and automated decision-making, whereas the EU and US policies sometimes deviate from using identical phrasing. However, it is essential to recognize that adherence to transparency requirements by law by TikTok does not necessarily

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Appendix Table B. Comparison of requirements for a privacy policy under CPRA, CPPA, and the privacy policy of TikTok for the USA.

Required information for a privacy policy in CPRA	Required information for a privacy policy in CPPA Regulations	Corresponding section in the privacy policy for the US
1798.130.(a)(5) (A) on A description of a consumer's rights and two or more designated methods for submitting requests	Section 7011(e)(2) An explanation of the rights that the CCPA confers on consumers regarding their personal information Section 7011(e)(3) An explanation of how consumers can exercise their CCPA rights and what consumers can expect from that process Section 7011(e)(5) If subject to the data reporting requirements set forth in section 7102, the information required under section 7102, or a link to that information.	Your rights
1798.130.(a) (5) (B) on (i)Categories of collected personal info; (ii) Sources of personal info; (iii) Purpose for data collection; and (iv)Third-party recipients	Section 7011(e)(1) A comprehensive description of the business's online and offline information practices	What information we collect How we use your information How we share your information
1798.130.(a)(5) (C) on (i)List of sold/shared categories; and (ii) List of disclosed categories		How we share your information
N/A	7011(e)(4) Date the privacy policy was last updated	Under the title of the privacy policy

N/A= Not applicable.

equate to users' perceptions about privacy policies to be transparent.

Regarding user perception, there are shared agreements among users in the EU, California, and China taking transparency as the transparency of data processing activities. Furthermore, there is a high convergence between the definitions of transparency perceived by users and the descriptions of transparency in the respective laws. However, a notable exception exists, with EU and California users emphasizing the significance of truthfulness and honesty as aspects of transparency not explicitly shared by Chinese users. Yet PIPL explicitly mentions truthfulness in its texts while GDPR (and WP29) and CPRA (and the Regulations by CPPA) do not have truthfulness and honesty in their texts. Chinese users demonstrate a smaller number of distinct perceptions of transparency compared to their counterparts in the EU and California. Additionally, users in the EU and California collectively view transparency as a vital instrument for fostering trust, an association that aligns with the concept in literature of privacy as trust. An intriguing aspect highlighted in the study is the presence of transparency cynicism in the responses of EU and California users. The presence of transparency cynicism underscores the complexity of addressing transparency in privacy laws, warranting further investigation into new trajectories of how, or whether, privacy and transparency could be perceived in laws to include pre-existing attitudes of users regarding transparency into consideration.

For future research, semi-structured interviews or focus groups should be conducted with social media users in the EU, the USA, and China to further explain the differences in users' understanding of transparency and the reasoning behind it. The themes identified in this study could serve as a basis for future research, incorporating interviews and/or focus groups to further investigate and explore the nuances and reasoning behind social media users' transparency

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Appendix Table C. Comparison of the PIPL, the PIS Specification template and the privacy policy of TikTok in China (Douyin).

Required information in Article 17 of the PIPL, and if not mandated in Article 17, the Articles related in PIPL	Template in PIS Specification	Corresponding section in the privacy policy of Douyin (the sister app of TikTok developed by the company Bytedance)
N/A	Scope	Scope
N/A	Summary	Summary
Article 17	Which personal information we collect from you	How we collect and use personal information
Article 17 Article 18	How we use your information	How we collect and use personal information
Article 17 Article 18	How we delegate processing, share, transfer or disclose your information	Partners involved during the data usage processes and the transfer, disclosure of personal information
Article 9	How we protect your information	How we protect the security of personal information
Article 17(3)	Your rights	Managing your personal information
Article 28	How we process personal information of children	How we protect minors
Article 17(2)	How your personal information is transferred in the globe	Under How we store your information
Article 17 Where a change occurs in the matters provided in the previous paragraph, individuals shall be notified about the change.	How this policy updates	Review and updates of this privacy policy
Article 17(1) the name and contract method of the handler	How to contact us	Contact us

N/A= Not applicable.

perceptions and explicate how underlying factors such as personal experiences, socio-political contexts would play a role in shaping these views. For example, while our study shows that Chinese social media users do not connect transparency to truthfulness and honesty, we are unable to specify the reasons for such disconnection. By using interviews or focus groups, future research could uncover the specific cultural, societal, political, or other contexts that shape Chinese users' perceptions on transparency. In addition, it would be beneficial to engage a broader range of stakeholders to gain insights into transparency, which could also shed light on the high degree of convergence we observed in our study. For instance, representatives from TikTok could explain how their privacy policies were formulated across different jurisdictions. Similarly, legal and technical experts from various regions could provide valuable insights, contributing to a more comprehensive understanding of transparency in different cultural and legal frameworks.

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